VAN LAW FIRM

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December 13, 2024

SENT VIA FACSIMILE OR EMAIL
[PLS UPDATE Defendant Insurance Company Name]
Attn: [PLS UPDATE Defendant Insurance Adjuster Name & Address]

F/E:

Re:	**Your Insured:**	**[PLS UPDATE Defendant Insured Name]**
	Our Client:	**[Claimant Name]**
	Policy No.:	**[PLS UPDATE DEFENDANT POLICY NUMBER]**
	Claim No.:	**[PLS UPDATE DEF INS CLAIM NUMBER]**
	Date of Loss:	**February 01, 2018**

To Whom It May Concern,

Please be advised that this office has been retained to represent [Client's Name] with regards to the personal injuries and damages sustained as a result of a motor vehicle collision involving your insured's vehicle.

So as to expedite this claim, please provide our office with the following:

1. A **certified copy of all insurance policies**, including any umbrella policy(ies), of your insured so that we may determine whether this claim can be resolved within your policy limits. Please be aware that an insurer's failure to disclose policy limits during the prelitigation phase may serve as a basis for bad faith actions. See *Powell v. Prudential P&C Ins. Co., 584 So. 2d 12 (Fla. 1991), and Boincourt v. Amex Assur. Co., 78 Cal. App. 4th 1390 (Cal. 2000)* which are both persuasive authorities on the matter.

2. **Initial property damage estimate** and **photos** of your insured's vehicle.

3. **Please have your insured answer, notarize, and return the enclosed affidavit of insurance coverage.**

4. Kindly forward copies of any recorded oral and or written statements taken from our client with regards to the facts of this loss.

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Please also notify this office as to your intentions with regards to [Client's Name] property damage claim. If no claim has been put forth with your office, please accept this letter as formal notification of the same. Furthermore, pursuant to NAC 686A.680, "where liability and damages are reasonably clear an insurer may not recommend that a third-party claimant make a claim under his or her own policies solely to avoid paying claims under the insurer's insurance contract or policy." **Pursuant to Dugan v. Gotsopoulos, 117 Nev. 285, 22 P.3d 203 (2001), if you do not resolve our client's property damage claim in a timely manner, we will assert a claim for loss of use for each day that our client is without a vehicle. The daily amount will be the value of a rental vehicle that is comparable to our client's vehicle. As such, it is advisable that you resolve our client's property damage claim promptly.**

Finally, please instruct your insured to preserve all evidence in your insured's possession, custody, or control related to this incident. This includes any photographs, and/or video/audio of the incident, parties, and/or the involved vehicles, text messages, statements of the parties, etc. Failure to preserve that evidence may result in sanctions against your insured. *See, Stubli v. Big D International Trucks, Inc.*, 810 P.2d 785, 107 Nev. 309 (1991).

Please confirm in writing your address and any other information to correspond with the adjuster. **Please note that, pursuant to Nevada Administrative Code 686A.665, you are to acknowledge the receipt of a claim notice within 20 working days after receipt of the claim**. Please note that our preferred method of communication is email. You may address all correspondence to filing@vanlawfirm.com. Should you have any further questions, comments or concerns regarding the contents of this letter, or should you require further information, please do not hesitate to contact our office.

Very truly yours,

Sandy Van

Sandy Van, Esq.
Van Law Firm

SV/[va's initials]

AFFIDAVIT OF INSURANCE COVERAGE

I, [Defendant Insured Name], hereby swear under penalty of perjury, that the following assertions are true of my own personal knowledge:

1. I was the insured of a vehicle who was operated by [INSERT Defendant Driver's Name] that was involved in a motor vehicle accident with [Client's Name] on February 01, 2018.
2. I declare that I have made a diligent search and that, to the best of my knowledge:

   This is a complete list of all insurance policies (umbrella, excess, or otherwise) providing coverage for this incident:

   _____
   _____
   _____
   _____
   _____
   _____

   That at the time of incident my vehicle was not used while in the course or scope of any agency, employment, joint venture or joint enterprise; my vehicle was not used while doing any errand for any entity, corporation or alter ego of any entity or corporation whatsoever.
3. I hereby affirm that I do not have sufficient personal assets to satisfy any significant judgment against me in excess of my policy limits with [PLS UPDATE Defendant Insurance Company Name].
4. I understand that the other parties are expressly relying upon these representations as being the complete truth in deciding whether to settle this claim.

_____

Printed Name: [Defendant Insured Name] Date: _____

STATE OF: _____)
) ss:
COUNTY OF: _____)

This instrument was acknowledged before me on _____ by _____

_____
Notary Public